Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR DEPARTMENT CM06
HON. JUDGE Megan L. Wagner

Date: 06/11/2026

Court Room Rules and Notices

#	Case Name	Tentative
	Jacobson Trust 2018-00975081	**JEFFREY/JJ AMENDED MOTION TO QUASH INTERESTED PARTIES DARLENE BOLIVER AND LAWRENCE JACOBSON'S NOTICE TO APPEAR AT TRIAL (ROA 2040)** The Court has read and considered Respondents Jeffrey Alan Jacobson (Jeffrey1) and JJ Freeman Property, LLC's (JJ) Motion to Quash Interested Parties Darlene Boliver (Darlene) and Lawrence Jacobson's (Lawrence) Notice to Appear at Trial etc. (ROA 2040); the Opposition thereto (ROA 2325); Jeffrey and JJ's Reply Brief (ROA 2369), and all relevant portions of the court file. 1 Members of the Jacobson family will be referred to by their first names for clarity; no disrespect is intended. In Darlene and Lawrence's Notice to appear at trial, they seek the attendance of **Jeffrey** Jacobson (a party), **Linda Asher**, the **person most knowledgeable at JJ** Freeman Property, LLC (JJ) regarding rental agreements and rent paid on the 1401 Freeman property; loans in which the Trust was a co-borrower, and JJ's net worth and financial condition; and the **person most knowledgeable at Jacobson Plastics, Inc. (JPI)** regarding loans secured by the Gladys or Freeman properties, loans in which the Trust was a co-borrower; promissory notes by JPI to the Trust; payments on such promissory notes; rental agreements for the Freeman property; JPI's historical financial condition; rental payments to JPI; and JPI's net worth. Jeffrey and JJ allege Linda Asher is not an officer, director or managing agent of JJ and is not a party or a person for whose benefit, immediate or otherwise, the action is maintained. These allegations are supported by Jeffrey's declaration in support of the motion. Darlene and Lawrence make no effort to justify the notice to appear as it relates to Linda Asher. The Court therefore **GRANTS** the motion to quash as to Linda Asher. Nothing in this ruling prohibits Darlene and Lawrence from securing Linda Asher's attendance to testify at trial by any other appropriate means. Jeffrey and JJ further argue that obtaining testimony of a "person most knowledgeable" is limited to deposition testimony. The Court agrees. No statute or caselaw allows for securing testimony of a "person most knowledgeable" outside of depositions noticed under Code of Civil Procedure section 2025.230. Darlene and Lawrence do not dispute this. The Court **GRANTS** the motion to quash as to the PMKs of JJ and JPI. Jeffrey and JJ also argue that JPI, like Asher, is not a party, person for whose immediate benefit an action is prosecuted, or an officer, director, or managing agent of a party and thus not

		subject to the "notice to appear" procedure set forth in Code of Civil Procedure section 1987(b). Like with Asher, this argument is supported by a declaration by Jeffrey under penalty of perjury that JPI does not occupy any of those positions. Darlene and Lawrence argue that JPI is not an "unrelated third party." This begs the question. Darlene and Lawrence do not establish (or even argue) that because the Trust owns 20% of JPI and Jeffrey is JPI's majority shareholder and chief executive, JPI is a party, a person whose immediate benefit the action is prosecuted, or an officer, director, or managing agent of a party. Because the Court is granting the motion to quash as to Asher, JJ, and JPI, the specificity of the categories of testimony sought from the PMK's need not be scrutinized. Finally, Jeffrey and JJ seek an award of $1,575 for expenses incurred in bringing this motion. Code of Civil Procedure section 1987.2 states: "[T]he court may in its discretion award the amount of reasonable expenses incurred in making or opposing the motion, including reasonable attorney's fees, if the court finds the motion was made or opposed in bad faith or without substantial justification." " 'Substantial justification' means that a justification is clearly reasonable because it is well grounded in both law and fact. (*Vasquez v. California School of Culinary Arts, Inc.* (2014) 230 Cal.App.4th 35, 40 (cleaned up).) Here, Darlene and Lawrence offer no well grounded argument – in law or in fact – that the notice to appear as to Asher, JJ and JPI was proper and should not be quashed. The question is not even close. Had they withdrawn the notice to appear, rather than oppose the motion to quash, section 1987.2 would not apply. They did not. The court awards Jeffrey and JJ their reasonable expenses of $1,575 incurred in bringing this motion. 1 Members of the Jacobson family will be referred to by their first names for clarity; no disrespect is intended.
		JEFFREY/JJ AMENDED MOTION IN LIMINE NO. 1 TO EXCLUDE EXPERT TESTIMONY OF KENNETH FEINFIELD (ROA 502) The Court has read and considered Respondents Jeffrey Alan Jacobson (Jeffrey1) and JJ Freeman Property, LLC's (JJ) Amended Motion in Limine No. 1 to Exclude the Testimony and Expert Opinions of Kenneth Feinfield (ROA 502); Interested Parties' Opposition to Respondents' Motion in Limine #1 of 3 (ROA 511); Jeffrey and JJ's Reply Brief (ROA 2214), and all relevant portions of the court file. 1 Members of the Jacobson family will be referred to by their first names for clarity; no disrespect is intended. In the Expert Witness Designation; Declaration of Leslie R. Smith, Attorney Smith states Feinfield "is expected to render opinions as to [1] the intent of the Settlors of the Jacobson Family Trust u/t/d September 27, 1955, as Amended; [2] the

		established standards and best practices of a trustee; [3] the rights, duties and restrictions of the trustees of the Jacobson Family Trust (under the law and under the relevant trust); [4] whether the trustees complied with or breached their duties; and [5] whether Respondent engaged in undue influence of the surviving Settlor.2 2 In the moving papers, Jeffrey and JJ state Feinfield admitted at his deposition he had not seen Attorney Smith's expert designation and would *not* be offering any expert opinions regarding undue influence or elder abuse; this assertion is not rebutted in the Opposition and the Court considers this portion of the designation withdrawn. The Motion is based on three grounds: (A) that the intent of the Settlors is not properly subject to expert testimony and interpretation of the Trust is question of law for the court and not subject to expert testimony; (B) that Feinfield's refusal to provide the substance of the facts and opinions he will provide at trial warrants exclusion of his testimony and opinions; and (C) Feinfield's proposed testimony and opinions applying law to fact invades the province of the trier of fact and is not the proper subject of expert testimony. The Court agrees that some of Feinfield's opinions are improper subjects of expert testimony, including opinions relating to the intent of the trustors and interpretation of the terms of the trust, and that Feinfield's evasive deposition testimony fell far short of what is required by the Code of Civil Procedure. However, the Court declines to preclude all of Feinfield's testimony provided, however, that Feinfield sit for another session of deposition where he explains in a meaningful way any opinions he has reached regarding specific breaches of fiduciary duty and the basis for such opinions. **1. Interpretation of Trust and Testator Intent** "A declaration of trust constitutes a contract between the trustor and the trustee for the benefit of a third party." (*Andersen v. Hunt* (2011) 196 Cal. App. 4th 722, 730, quoting *Estate of Bodger* (1955) 130 Cal. App. 2d 416, 424.) Interpretation of a contract is a question of law for the court to decide in every instance. (*Parsons v. Bristol Development Co.* (1965) 62 Cal. 2d 861, 865 (interpretation of a contract is a question of law for the court); accord *Kitty-Anne Music* *Co. v. Swan*, 112 Cal. App. 4th 30, 36 (2003) (holding summary judgment was proper despite the trial court's refusal to consider expert opinion on contractual intent since "questions regarding the parties' intent, the completeness of the [contract], or its enforceability, are legal issues for the court to resolve and not matters for expert opinion."); see also *Brecher v. Gleason* (1972) 27 Cal. App. 3d 496, 502 ("the expert cannot tell us the specific intent of the parties in the particular case."); and *Horsemen's Benevolent & Protective Assn. v. Valley Racing Assn*. (1992) 4 Cal. App. 4th 1538, 1559 ("it is solely a judicial function to

		interpret a written instrument unless the interpretation turns upon the credibility of extrinsic evidence.”). The Court finds that testimony concerning the interpretation of the Trust is not properly subject to expert testimony. The Court further finds that the intent of the Settlors is an issue for the trier of fact and not “a subject that is sufficiently beyond common experience that the opinion of an expert would assist the trier of fact.” (Evid. Code § 801.) Therefore, the Court **GRANTS** Motion in Limine No. 1 as to topic (1) the intent of the Settlors of the Jacobson Family Trust u/t/d September 27, 1955, as Amended and topic (3) the rights, duties and restrictions of the trustees of the Jacobson Family Trust (under the law and under the relevant trust). **2. Meaningful Deposition** “[T]he very purpose of the expert witness discovery statute is to give fair notice of what an expert will say at trial. This allows the parties to assess whether to take the expert's deposition, to fully explore the relevant subject area at any such deposition, and to select an expert who can respond with a competing opinion on that subject area.” (*Bonds v. Roy* (1999) 20 Cal.4th 140, 146-147.) The party responding to a demand for expert witness exchange must “provide a narrative stating 'the general substance of the testimony that the expert is expected to give.” As interpreted by case law, this requires a party to disclose the substance of the facts and the opinions to which the expert will testify, either in his witness exchange list, or in his deposition, or both.” (*Dozier v. Shapiro* (2011) 199 Cal.App.4th 1509, 1518–1519.) “When an expert is permitted to testify at trial on a wholly undisclosed subject area, opposing parties ... lack a fair opportunity to prepare for cross-examination or rebuttal.” (*Easterby v. Clark* (2009) 171 Cal.App.4th 772, 780, quoting *Bonds v. Roy* (1999) 20 Cal.4th 140, 147.) Feinfield was unprepared at his deposition to provide basic, necessary information regarding his proposed expert testimony in a meaningful way. Feinfield testified he had gone over hundreds of pages of documents that he would be happy to answer questions about, but could not as they sat there at deposition “recall any one of those necessarily.” He further testified he could not provide specific opinions “without your presenting to me a variety of documents …. That you feel pertain to that issue (of breach of fiduciary duty concerning the gift transfers). If you do so, I would be happy to discuss that and give you my opinion.” This Court finds his response to these basic expert deposition questions to be evasive, bordering on bad faith. This, however, does not mean preclusion of expert testimony is warranted. Where an expert witness testifies at deposition he or she has *not* reached a particular opinion, the deposing party is entitled to rely on that disclaimer “until such time as [the party retaining the expert] disclosed that [the expert] had conducted

		a further investigation and had reached additional opinions in a new area of inquiry." (*Kennemur v. State of California* (1982) 133 Cal.App.3d 907, 920 ("*Kennemur"*).) Here, Feinfield did disclose he had "other opinions," he simply refused to articulate them. However, exclusion of Feinfield's testimony at trial is not yet warranted. "The overarching principle in *Kennemur, Jones*,*3* and *Bonds4* is clear: a party's expert may not offer testimony at trial that exceeds the scope of his deposition testimony *if* the opposing party has no notice or expectation that the expert will offer the new testimony, or *if* notice of the new testimony comes at a time when deposing the expert is unreasonably difficult." (*Easterby v. Clark* (2009) 171 Cal.App.4th 772, 780.) Here, there is ample time to conduct a meaningful deposition. The Court orders Feinfield to sit for an additional session of deposition, not to exceed 7 hours unless an application for extended time is made and granted, and be prepared to list the opinions he has reached and to which he intends to testify at trial, and explain the principal supporting evidence and analysis for such opinions. The Court orders this deposition be scheduled to be completed no later than 7/30/26. The Court expects counsel to action professionally and reasonably is scheduling and conducting this deposition. **3. Proper Expert Testimony and Invading the Province of the Court and Trier of Fact** While Jeff/JJ correctly argue that "experts may not give opinions on matters which are essentially within the province of the court to decide" (*Staten v. Superior Court* (1996) 45 Cal.App.4th 1628, 1635), otherwise admissible expert testimony cannot be excluded merely because it embraces the ultimate issues of the case. (*Neal v. Farmer's Ins. Exch.* (1978) 21 Cal. 3d 910, 924.) "The rule … is that the standard of care applicable to a given profession must be determined from the testimony of experts unless the conduct involved is within the common knowledge of laymen." (*Allied Properties v. John A. Blume & Associates* (1972) 25 Cal.App.3d 848, 858; see *Avivi v. Centro Medico Urgente Medical Center* (2008) 159 Cal.App.4th 463, 467 (physicians' standard of care); *Bardessono v. Michels* (1970) 3 Cal.3d 780, 789-790, 91 (same); *Wright v. Williams* (1975) 47 Cal.App.3d 802, 810 (attorneys' standard of care.) In *Estate of Gump* (1991) 1 Cal.App.4th 582, the court of appeal found substantial evidence of negligent breach of trust under Probate Code section 16400 from, *inter alia*, testimony by a trust administration expert that "the conduct of Wells Fargo's trust administrators in so administering the trusts was 'highly unprofessional' and did not meet the standard of care for a professional trustee." (*Id.* at 595.) 1 Members of the Jacobson family will be referred to by their first names for clarity; no disrespect is intended.

2 In the moving papers, Jeffrey and JJ state Feinfield admitted at his deposition he had not seen Attorney Smith's expert designation and would *not* be offering any expert opinions regarding undue influence or elder abuse; this assertion is not rebutted in the Opposition and the Court considers this portion of the designation withdrawn.

3 *Jones v. Moore* (2000) 80 Cal.App.4th 557.

4 *Bonds v. Roy* (2018) 20 Cal.4th 140.

JEFFREY/JJ AMENDED MOTION TO BIFURCATE (ROA 2389)

The Court has read and considered Respondents Jeffrey Alan Jacobson (Jeffrey[1]) and JJ Freeman Property, LLC's (JJ) Amended Motion to Bifurcate (ROA 2389); the Request for Judicial Notice in Support Thereof (ROA 2377); Interested Parties' Opposition to Respondents' Motion to Bifurcate (ROA 2487), Response to Jeffrey and JJ's RJN (ROA 2488) and Request for Judicial Notice (2347); Jeffrey and JJ's Reply Brief (ROA 2499) and all relevant portions of the court order.

Pursuant to the Court's authority under Code of Civil Procedures sections 598 and 1048, the Court Orders the following:

The remaining issues set for trial shall be tried in the following manner and order:

(1) The Court will determine whether the alleged gift transfers of Darlene and Lawrences' 20% interests in the Jacobson Family Trust dated September 19, 1977 (the Trust) are void as a matter of law as violating the spendthrift provision of the Trust (Section SIXTH, at pp 16-17, of the Trust). The Court sets the following briefing schedule on that limited issue: Darlene/Lawrence's brief due _____; Jeffrey's opposition brief due ____; Darlene/Lawrence's reply brief due ___. For the purposes of this portion of the trial, the Court takes judicial notice of all of the Court's records in this matter; the parties need not/should not file separate requests for judicial notice. Rather any reference to any other document in the court file should be described by title of document and filing date (or ROA number). Briefs to be limited to 10 pages for the initial and opposition briefs and 5 pages for the reply. The Court cannot stress enough that these briefs are expressly limited to the singular legal issue of whether the spendthrift provision of the Trust prohibits the gift transfers. Oral argument on the issue will be __________.

(2) The Court will commence trial on the remaining issues of the Second Amended Petition (ROAs 67 and 129) as scheduled on August 12, 2026.

(3) Following the completion of the trial on the Second Amended Petition, trial on Jeffrey's Amended Cross Petition (ROA 1792) will commence.

(4) All evidence in the trial on the Second Amended Petition shall be admitted and considered in the trial on the Amended Cross Petition.

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